

Carmichele v Minister of Safety and Security

CARMICHELE v MINISTER OF SAFETY AND SECURITY AND ANOTHER 2001 (4) SA 938 (CC)

Holding

Courts are obliged to develop the common law in accordance with the spirit, purport and objects of the Bill of Rights (s 39(2)). The delictual rules on wrongfulness and the state's duty to protect must be reconsidered in light of constitutional rights to life, dignity and freedom and security of the person, and the state's duty to prevent gender-based violence.

Significance

Foundational for constitutional development of private law and state liability for failures to protect against violent crime.

NOTE: Educational case summary.

— End of curated extract. Verify official text before reliance. —